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File No.: EXP202406389

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On April 12, 2024, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to COMUNIDAD DE PROPIETARIOS A.A.A. (hereinafter, THE COMMUNITY) with NIF: ***NIF.1.

The facts brought to the attention of this authority are:

That the minutes of the ordinary general meeting, held on 08/03/2023, were still published as of April 2, 2024, in a locked display case located in the entrance hall of the building, visible to anyone entering the building. The minutes contain the surname and initial of the name associated with a debt of the complainant, who provides a copy of the minutes and photos of the display case, its content, and location.

Along with the written complaint, the following documents are submitted:

- Minutes of the ordinary assembly of 08/03/2023.
- 8 photographs showing: the sign of the surveillance camera installed at the entrance, the location of the display case, and the content of the display case (minutes).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to THE COMMUNITY for analysis, and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The electronic notification of the transfer of the complaint, which was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not collected by the complained party, resulting in expiration on June 9, 2024. The notification was reiterated by certified mail on June 25, 2024, and was again returned marked "incorrect address."

No response has been received to this transfer notification.

THIRD: On July 12, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

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FOURTH: On November 28, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

FIFTH: The initiation agreement, sent by certified mail, was not collected by the complained party. The file contains records of two delivery attempts on December 11, 2024, and December 12, 2024, with a result of absent at the address and a notice left in the mailbox for collection at the post office, which was not collected by THE COMMUNITY, proceeding, therefore, to its publication in the BOE on December 27, 2024.

The aforementioned initiation agreement was notified in accordance with the regulations established in the LPACAP, and after the deadline for submitting allegations had passed, it was confirmed that no allegations had been received regarding the initiation of the file in this Agency.

Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated time regarding the content

of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that constituted the infringement attributed to the complained party and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In light of all that has been acted upon by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

SOLE: That the minutes of the ordinary general meeting, held on 08/03/2023, were published in a locked display case located in the entrance hall of the building, visible to anyone entering the building, and remained published as of April 2, 2024. The minutes contained the surname and initial of the name of the complainant, associated with a debt of theirs.

The complainant provided a copy of the minutes of the ordinary assembly of 08/03/2023 and 8 photographs showing the sign of the surveillance camera installed at the entrance, the location of the display case, and the content of the display case (minutes).

LEGAL GROUNDS

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Procedure

Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this Organic Law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since THE COMMUNITY carries out, among other processing activities, the collection and storage of personal data of individuals such as names, surnames, postal addresses, and debts of the neighbors.

THE COMMUNITY carries out this activity in its capacity as the data controller, as it determines the purposes and means of such activity by virtue of Article 4.7 of the GDPR.

IV

Breach of Obligation. Duty of Confidentiality.

Article 5.1.f) of the GDPR in relation to the principle of integrity and confidentiality in the processing of data establishes that:

“1. Personal data shall be:

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f) processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures (integrity and confidentiality).”

The principle of confidentiality mentioned therefore requires the protection of personal data against unauthorized access, use, and disclosure, as Recital 39 of the aforementioned GDPR states:

“[...] Personal data must be processed in a manner that ensures an adequate level of security and confidentiality of personal data, including to prevent unauthorized access or use of such data and the equipment used for processing.”

Law 49/1960, of July 21, on horizontal property establishes in its Article 19:

- Art. 19.1: “The agreements of the Board of Owners shall be recorded in a minutes book certified by the Property Registrar in the manner provided for by regulation.”

- Art. 19.3: “The minutes of the meetings shall be sent to the owners in accordance with the procedure established in Article 9.”

Regarding the procedure for sending the minutes to the owners, Article 9.h) second paragraph of the aforementioned Law establishes:

“If a citation or notification to the owner is impossible to carry out at the place provided for in the previous paragraph, it shall be understood to have been made by placing the corresponding communication on the community bulletin board, or in a visible place of general use designated for this purpose, with diligence expressing the date and reasons for proceeding with this form of notification, signed by the person performing the functions of secretary of the community, with the approval of the president. The notification made in this manner will produce full legal effects within three calendar days.”

In the present case, the names, surnames, postal addresses, and debts of the neighbors have been exposed to third parties, with no evidence in the file expressing the reason for placing the minutes of the ordinary general meeting held on 03/08/2023 in the display case of the portal. Furthermore, the three-calendar-day period, for the notification of the minutes to take effect, would have been exceeded as it was exposed from the date of the Ordinary Meeting (03/08/2023) until 02/04/2024, as stated by the complainant.

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the disclosure of names, surnames, postal addresses, and debts with the community constitutes a presumed infringement of the principle of confidentiality established in Article 5.1.f) of the GDPR.

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V

Classification of the infringement of Article 5.1.f) of the GDPR and qualification for the purposes of limitation

If the aforementioned infringement of Article 5.1.f) of the GDPR is confirmed, it could constitute the commission of the infringement classified in Article 83.5.a) of the GDPR, which states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with

administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) “The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

In this regard, the LOPDGDD, in its Article 71, establishes:

“Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 LOPDGDD “Very serious infringements” provides:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein, and in particular, the following:

a) “The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

VI

Proposal for sanction.

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In this case, taking into consideration the content of the record regarding the number of debtor neighbors (approximately 12), the information reported in the president's report on the accounts for the 2022-2023 financial year, the interventions of other neighbors, as well as the lack of justification for the public display of said record in the portal's showcase, and in accordance with the transcribed provisions, and without prejudice to what results from the instruction of the procedure, the initial assessment that reaches the amount of the fine is 1,000 euros, for infringement of Article 5.1.f) of the GDPR.

VII

Corrective measures

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If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case, Article 5.1.f) of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations are performed in compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”

Thus, the responsible entity may be required to align its actions with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, the resolution adopted may require THE COMMUNITY to adopt the following measures within 1 month from the date of enforceability of the resolution concluding this procedure:

- To demonstrate the adoption of the necessary measures to ensure compliance with the provisions of Article 5.1.f) of the GDPR and more specifically to ensure that minutes of the Owners' Meeting are not displayed to the owners and third parties accessing the residences, except in the cases specified by the Horizontal Property Law. If the minutes that have given rise to this procedure are still displayed, they must be removed from the display case within 1 month.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of a further administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO IMPOSE on the COMMUNITY OF PROPERTY OWNERS A.A.A., with NIF ***NIF.1, a fine of €1,000 (ONE THOUSAND EUROS) for a violation of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS A.A.A.

THIRD: To order the COMMUNITY OF PROPERTY OWNERS A.A.A., with NIF ***NIF.1, to certify, in accordance with Article 58.2.d) of the GDPR, within 1 month, that it has complied with the requirement to ensure that minutes of the Owners' Meeting will not be placed in view of owners and third parties accessing the residences, except in cases specified by the Horizontal Property Law.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for

reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not receive knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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